

One effect of the Single Market is that Revenue cannot refuse permission to the pilot of an aircraft making an intra-Union flight, (which is not carrying either third country goods or passengers who have originated in a non-EU country and not cleared at another EU airport), to land at a place other than a Customs controlled airport, **except where such refusal is necessary for the purposes of enforcing a prohibition or restriction on importation or exportation.** In practice, to ensure effective enforcement of prohibitions and restrictions (particularly drugs) the preferred approach is for aircraft arriving on intra-Union flights to continue to first land at a Customs controlled airport. In practice this has not proved problematical because in many instances this will suit the aircraft operator anyway. Requests for permission for intra-Union flights to land other than at a Customs controlled airport should continue to be refused on the basis that it is necessary to first land at a Customs controlled airport for Customs to exercise prohibition and restriction controls (particularly drugs). Any appeals against such a ruling should be referred to Customs Division Divisional Office for consideration. (This approach does not affect permission for one off events such as air shows or the like).

Private aircraft

Normal Customs controls, other than the requirements to take the aircraft to the examination station and report, do not apply in respect of the pilot of an intra-Union flight arriving at a Customs airport unless:

- Third country goods are carried on board.
- Prohibited or restricted goods are carried on board.
- Stores are carried on board.
- Passengers are on board who have originated in a non-EU country and have not been cleared at another EU airport.